

Nakka Mallikarjuna Vara Prasad, vs Nakka Jayasri Bodi Jayasri, on 9 May, 2025

* THE HONOURABLE SRI JUSTICE RAVI NATH TILHARI

+ CIVIL REVISION PETITION (SR) NO: 5965 /2025

% .05.2025

Nakka Mallikarjuna Vara Prasad.

.....Petitioner

And:

\$ Nakka Jayasri

....Respondent

!Counsel for the petitioner

: Sri A.Venkata Durga Rao

^Counsel for the respondent

:

<Gist:

>Head Note:

? Cases referred:

1. 2023 SCC OnLine All 4466
2. 2020 SCC OnLine All 2190
3. OP (Crl.) No.301 of 2016 decided on 06.03.2020
by High Court of Kerala at Ernakulam
4. 2025 SCC OnLine SC 791
5. AIR 1956 SC 415

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HIGH COURT OF ANDHRA PRADESH AT AMARAVATI

CIVIL REVISION PETITION (SR) NO: 5965 /2025

DATE OF JUDGMENT PRONOUNCED:

.05.2025

SUBMITTED FOR APPROVAL :

THE HON'BLE SRI JUSTICE RAVI NATH TILHARI

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|--|--------|
| 1. Whether Reporters of Local newspapers
may be allowed to see the Judgments? | Yes/No |
| 2. Whether the copies of judgment may be
marked to Law Reporters/Journals | Yes/No |
| 3. Whether Your Lordships wish to see the fair
copy of the Judgment? | Yes/No |

RAVI NATH TILHARI, J

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THE HONOURABLE SRI JUSTICE RAVI NATH TILHARI

CIVIL REVISION PETITION (SR) NO: 5965 /2025

ORDER:

This petition under Article 227 of Constitution of India has been filed by the husband of the respondent feeling aggrieved by the rejection of his application under Order 7 Rule 11 CPC by order dated 31.01.2025 by the learned Judge, Principal Family Court - cum - IV Additional District Court, Vijayawada in Crl.M.P.No.738 of 2024 in FCOP.No.984 of 2018.

2. The office objection about the maintainability of the petition under Article 227 of Constitution of India against the order passed in proceedings under Section 125 Cr.P.C is overruled. The challenge to the proceedings under Section 125 Cr.P.C or an order passed in those proceedings would be amenable to the jurisdiction of this Court under Article 227 of Consitution of India. The petitioner may also have an alternative remedy but an alternative remedy is not a bar to the maintainability of petition under Article 227 of Constitution of India though that may be a factor against the entertainability of the petition. Let the petition be numbered.

3. The said FCOP was filed by the respondent-wife for maintenance under Section 125 Cr.P.C. The petitioner-husband filed counter. During pendency, the petitioner also filed I.A.No.738 of 2024 under Order 7 Rule 11 CPC seeking to reject the petition for maintenance. He inter-alia submitted that the Court lacked territorial jurisdiction and the petition was not maintainable. He submitted that the petition did not disclose the cause of action. Any residence proof was not filed and there was suppression of material facts. The petitioner filed various documents in respect of his contention that there was no territorial jurisdiction with the learned Trial Court, so as to reject the petition of the wife, under Order 7 Rule 11 CPC.

4. The wife filed objection/counter and inter-alia submitted that the husband did not take any such objection with respect to the address of the wife for more than six years. It was further submitted that the petition of the husband to receive additional counter was dismissed. However the revision filed by him before the High Court was allowed and additional counter was filed. Even in the additional counter, he did not take plea of alleged lack of territorial jurisdiction in the court concerned and when the case was coming for cross-examination of the husband, Crl.M.P.No.738 of 2024 under Order 7 Rule 11 CPC was filed just to cause the harassment of the wife and to drag the proceedings, unnecessarily.

5. Learned Trial Court framed the following point for consideration:

"Whether the petitioner/respondent is entitled to seek for rejection/dismissal of petition by invoking Order VII Rule 11 CPC?"

6. Learned Court vide order dated 31.01.2025 rejected Crl.M.P.No.738 of 2024.

7. Learned counsel for the petitioner submitted that the petition filed by the wife was not maintainable. It did not disclose the cause of action. The Court also lacked territorial jurisdiction. So, FCOP.No.984 of 2018 was barred. Consequently, the application under Order 7 Rule 11 CPC should have been allowed. He placed reliance in the case of Shabana Bano v. State of U.P1.

8. I have considered the aforesaid submission and perused the material on record.

9. Learned Trial Court held that as per the averments of the petition under Section 125 Cr.P.C, the marriage was solemnized on 23.11.2017 at Gudivada as per Hindu rites and customs and the wife joined the husband at Hyderabad to lead marital life. Learned Court recorded the finding that the wife had shown her address at Gunadala, Vijayawada. In support thereof the copy of the Aadhar card in proof of her residence was also filed. She also filed photostat copy of FIR in Cr.No.395 of 2018 of Machavaram P.S., Vijayawada against the husband and his family members. It also referred to Section 126(1) Cr.P.C that the proceedings under Section 125 may be taken against any person in any district (a) where he is, or (b) where he or his wife resides, or

(c) where he lastly resided with his wife, or as the case may be, with the mother of the illegitimate child. The learned Court further recorded that from pleadings as also the documents annexed, the petition disclosed the cause of action and the residence at the time of filing of the petition, was prima facie within the territorial jurisdiction of the concerned Court.

10. Learned Trial Court further observed that the suit was of the year 2018 and also identified as an old matter. The petition was filed by the husband to drag the proceedings for maintenance.

2023 SCC OnLine All 4466

11. This Court is of the confirmed view that the procedure under CPC, in particular Order VII Rule 11 CPC would not be applicable to the proceedings for maintenance under Section 125 Cr.P.C. Any

provision of law applying Order VII Rule 11 CPC to the proceedings under Section 125 Cr.P.C or any independent provision alike Order VII Rule 11 CPC in Cr.P.C for maintenance proceedings has not been placed before the Court.

12. In *Durgawati Devi v. Muktinath Tiwari*², the Allahabad High Court held as under:

"10. Even as per the judgment in *Mohammad Nadeem v. State of U.P.* {(2015) 2 All Cri R 2207} provisions of CPC have not been made applicable to proceedings under Chapter IX and there is nothing therein which could persuade this Court to hold otherwise. The ratio of the said judgment on the issue as to whether an appeal would lie under Section 19 of the Act, 1984 or remedy under the provisions of any other law for the time being in force like Cr.P.C. CPC and Hindu Marriage Act, is available, does not have any bearing so far as the question involved in this application is concerned. The question here is as to whether, for transfer of proceedings under Sections 125 and 127, CPC will apply or Cr.P.C. will apply. From a bare perusal of subsection 92) of Section 10, as already discussed, and for the reasons already given it is Cr.P.C. which applies and it contains a provision for transfer of such proceedings under Section 407 thereof.

11. In the aforesaid case of *Nadeem* as there was a specific remedy against the orders of the Family Court by way of an appeal under Section 19(1) of the Act, 1984, therefore, the provisions of the CPC and the Cr.P.C. were held to be inapplicable but the said reasoning does not apply in this case in view of the unambiguous provision of the Act, 1984 itself in this regard as noted hereinabove, which permits the applicability of Cr.P.C. to proceedings under Chapter IX, Cr.P.C. This is also the view taken by a co-ordinate Bench of this Court in the Case of *Durga Prasad v. Family Judge, Bareilly*, (1998) 33 ALR 536 :

1998 AIHC 3902 (All). In view of the aforesaid discussion, it is not necessary to go into the question as to whether remedy will lie under Article 227 of the Constitution of India as suggested by some of the learned counsels, as this would be the case only if there was no remedy available in the Cr.P.C."

13. In *Sebastian v. Alphonsa*³, the Kerala High Court held as under:

"17. Legal position that emerges from the discussion of the above case laws is that though proceeding under Section 125 Cr.P.C. is essentially a civil proceeding or a quasi civil proceedings, the Code of Civil Procedure has no application. The procedure under Section 125 Cr.P.C. is summary procedure governed by Chapter IX Cr.P.C., which has been consistently held to be a self contained provision. It was also held that Chapter XV of Cr.P.C. was not applicable to the facts of the case.

18. In the emerging situation, when an application filed by the respondent in a proceeding under Section 125 Cr.P.C., what should be the procedure adopted by the

Court? It seems that the answer lies in the Division Bench decision in Ramakrishnan v. Kali {1987 (2) KLT 938}. In that case, though it was held that provisions under CPC will not apply and though the Chapter IX is a self contained code, it was held that the court was bound to evolve a procedure of its own, in consonance of the provisions and spirit of the Cr.P.C....."

14. In Shabana Bano (supra) upon which reliance was placed by the learned counsel for the petitioner the application of the wife under Section 125 Cr.P.C was rejected. Challenging the same, the petition under Section 482 Cr.P.C was filed. The legal issues for consideration framed by the High Court of Allahabad in Shabana Bano (supra) were as under:

"22.The legal issues born out from the records of the present application, which has also been admitted by the learned counsel for the parties are as under:

(a) Whether in the proceedings under Section 125 Cr.P.C., the provision of Section 11 of the Cr.P.C. i.e. principle of res judicata will apply or not?;

(b) Whether the principle of res judicata will apply in the case of the applicant under section 125 Cr.P.C.?; and OP(Crl.) No.301 of 2016 dated 06.03.2020 by High Court of Kerala

(c) Whether fresh application under Section 125 Cr.P.C. filed by the applicant is maintainable or not, after her two applications under Section 125 and 126 Cr.P.C.

have been rejected for want of prosecution."

The Allahabad High Court answered on issue no. (a) that in the proceedings initiated by the application under Section 125 Cr.P.C., the provisions of Section 11 of the Code of Civil Procedure i.e., principle of res judicata will apply. On issue nos. (b) & (c) it was held that the principle of res judicata will only be applicable in second case/application in which the matter directly and substantially in issue had been directly and substantially in issue in the former application under Sections 125 and 126 (2) Cr.P.C between the same parties which was heard and decided.

15. In Shabana Bano (supra) earlier two cases filed by the wife under Section 125 Cr.P.C. and 126(2) Cr.P.C. were rejected for want of prosecution. Those were not finally decided after affording opportunity of hearing. It was held that the application afresh for the same relief of cause of action was maintainable and principle of res judicata was not attracted. There cannot be any dispute that the principles of res judicata would apply even to the proceedings under Section 125 Cr.P.C., but not because of Section 11 CPC. The principles of res-judicata shall be applicable and it is so to give finality to the matter decided, even in Criminal Proceedings. In S.C.Garg v. State of Uttar Pradesh⁴, the Hon'ble Apex Court held following Pritam Singh v. The State of Punjab⁵ that principles of res-judicata apply to Criminal Proceedings. 2025 SCC OnLine SC 791 AIR 1956 SC 415 But, here the question is not with respect to the applicability of principle of res- judicata in view of some previous proceedings between the parties attaining finality. So, on the strength of Shabana Bano (supra), it

cannot be said that Order VII Rule 11 CPC shall also apply to Section 125 Cr.P.C. proceedings.

16. The learned Court considered the application and rejected the same on merits, by holding that the petition disclosed the cause of action and also on its face value, there was no bar of territorial jurisdiction. The petition under Section 125 Cr.P.C was filed within the territorial jurisdiction of the Court as per Section 126 of Cr.P.C, which reads as under:-

"126. Procedure -

1) Proceedings under section 125 may be taken against any person in any district -

a) where he is, or

b) where he or his wife resides, or

c) where he last resided with his wife, or as the case may be, with the mother of the illegitimate child.

2) All evidence to such proceedings shall be taken in the presence of the person against whom an order for payment of maintenance is proposed to be made or, when his personal attendance is dispensed with, in the presence of his pleader, and shall be recorded in the manner prescribed for summons cases:

Provided that if the Magistrate is satisfied that the person against whom an order for payment of maintenance is proposed to be made is wilfully avoiding service, or wilfully neglecting to attend the Court, the Magistrate may proceed to hear and determine the case ex parte and any order so made may be set aside for good cause shown on an application made within three months from the date thereof subject to such terms including terms as to payment of costs to the opposite party as the Magistrate may think just and proper.

3) The Court in dealing with applications under section 125 shall have power to make such order as to costs as may be just."

17. The petitioner has not paid any amount towards maintenance to the wife as submitted by the petitioner's counsel on specific query made on the aspect of maintenance. He has also not deposited the amount pursuant to the impugned order, though the proceedings were filed in the year 2018.

18. There is no illegality in the impugned order passed by the learned Court.

19. The Civil Revision Petition is dismissed.

No order as to costs.

As a sequel thereto, miscellaneous petitions, if any pending, shall also stand closed.

_____ RAVI NATH TILHARI, J Dated: .05.2025 Note: L.R. copy be marked B/o.

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NO: 5965 /2025 Dated: .05.2025 Note: L.R. copy be marked B/o.

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